

Planning Certificate

Section 10.7(2) Environmental Planning and Assessment Act

Issued 4 December 2025

Application Details

Application Name	FYND Pty LTD
Certificate No.	PC2512041530
Applicant Reference	251127314

Land to which Certificate relates

Address	424 Horseshoe Road, MULLION
Legal Description	LOT:154 DP:751834

Planning Instruments and Development Control Plans

State Environmental Planning Policies	Refer Schedule A
Draft State Environmental Planning Policies	Nil
Local Environmental Plan	Yass Valley Local Environmental Plan 2013 (the LEP) (Accompanying maps can be viewed here)
Draft Local Environmental Plan	No
Development Control Plan	Yass Valley Council Development Control Plan 2024
Draft Development Control Plan	No

Yass Valley Local Environmental Plan 2013

Zone of the land	RU1
Purposes for which development may be carried out without the need for development consent	RU1 - Environmental protection works; Extensive agriculture; Forestry; Home-based child care; Home businesses; Home occupations; Intensive plant agriculture; Water storage facilities
Purposes for which development may be carried out with development consent	RU1 - Agritourism; Air transport facilities; Airstrips; Animal boarding or training establishments; Aquaculture; Artisan food and drink industries; Bed and breakfast accommodation; Boat launching ramps; Boat sheds; Camping grounds; Caravan parks; Cellar door

premises; Cemeteries; Charter and tourism boating facilities; Community facilities; Correctional centres; Crematoria; Depots; Dual occupancies; Dwelling houses; Eco-tourist facilities; Environmental facilities; Extractive industries; Farm buildings; Farm stay accommodation; Flood mitigation works; Function centres; Helipads; High technology industries; Home industries; Industrial retail outlets; Industrial training facilities; Information and education facilities; Intensive livestock agriculture; Landscaping material supplies; Markets; Open cut mining; Places of public worship; Recreation areas; Recreation facilities (major); Recreation facilities (outdoor); Restaurants or cafes; Roads; Roadside stalls; Rural industries; Rural supplies; Rural workers' dwellings; Serviced apartments; Signage; Timber yards; Transport depots; Truck depots; Turf farming; Waste or resource management facilities; Water recreation structures; Water supply systems

Purposes for which development is prohibited	RU1 - Any development not specified in item 2 (b)(i) or 2(b)(ii)
Additional permitted uses	No
Development standard that specifies fixed minimum land dimensions for the erection of a dwelling house on the land	The Yass Valley Local Environmental Plan 2013 (LEP) does not fix "minimum land dimensions" for the erection of a dwelling house on the land. However, there is a minimum lot size for the erection of a dwelling house on the land, as shown on the YVLEP lot size map, is 40 ha. There are some circumstances in which a dwelling may be erected on land notwithstanding that the land does not meet the minimum lot size for the erection of a dwelling house, please refer to Part 4 of the YLEP. See also cl. 4.6 of the YLEP, which allows an exception to development standards in some circumstances.
The land is in a conservation area , including heritage conservation?	No
There is an item of environmental heritage situated on the land	No

Contributions Plans

[Yass Valley Development Contributions Plan 2018](#)

[Yass Valley Heavy Haulage Contributions Plan 2021](#)

Exempt Development

Pursuant to clauses 1.16(1)(b1) to (d) and 1.16A of E&C SEPP, exempt development may/may not be carried out on the land in accordance with the table below.

General Exempt Development Code	Yes
Advertising and Signage Exempt Development Code	Yes
Temporary Uses and Structures Exempt Development Code	Yes
There is exempt development codes varied pursuant to clause 1.12 E&C SEPP in relation to the land	No

Complying Development

Pursuant to clauses 1.17A(1)(c) to (e), (2) (3) and (4), 1.18(1)(c3) and 1.19 of **State Environmental Planning Policy (Exempt and Complying Development Codes) 2008** (E&C SEPP), complying development may/may not be carried out on the land in accordance with the table below.

Housing Code	RU1 - No, the code is not applicable to Yass Valley LGA.
Rural Housing Code	RU1 - No, the code is not applicable to Yass Valley LGA.
Low Rise Housing Diversity Code	RU1 - No, the code is not applicable to land use zoning of the land.
Greenfield Housing Code	RU1 - No, the code is not applicable to Yass Valley LGA.
Inland Code	RU1 - Yes
Housing Alteration Code	RU1 - Yes
General Development Code	RU1 - Yes
Industrial and Business Alteration Code	RU1 - Yes
Industrial and Business Buildings Code	RU1 - No, the code is not applicable to land use zoning of the land.
Subdivision Code	RU1 - No, the code is not applicable to land use zoning of the land.
Demolition Code	RU1 - Yes
Fire Safety Code	RU1 - Yes
Agritourism and Farm Stay Accommodation Code	RU1 - Yes
There are complying development codes varied , pursuant to s.1.12 E&C SEPP in relation to the land	No

Site Constraints / Environmental Matters

Land slip, tidal inundation, subsidence, acid sulphate soils, coastal hazards or sea level rise	No
Bushfire prone land	Yes
Contaminated land	No
Aircraft noise	No
Salinity	Yes
Any other risk	No
Loose-fill asbestos insulation register of NSW Fair Trading	No
Mine subsidence district within the meaning of the Coal Mine Subsidence Compensation Act 2017	No
The land is serviced, or to be serviced, by a private water or sewer service	No
Property vegetation plan approved and in force under Part 4 of the former Native Vegetation Act 2003	No
The land is in an area of outstanding biodiversity value under the Biodiversity Conservation Act 2016	No
Biodiversity stewardship site under a Biodiversity Stewardship Agreement under Part 5 of the Biodiversity Conservation Act 2016	No
Biodiversity certified land within the meaning of Part 8 Biodiversity Conservation Act 2016)	No
Any environmental planning instrument or draft environmental planning instrument (Planning Proposal) provides for the acquisition of the land by a public authority as referred to in s3.15 of the EP&A Act	No
Affected by any road widening or road realignment proposal pursuant to:	
(a) Division 2 of Part 3 of the Roads Act 1993	No
(b) Any environmental planning instrument	No
(c) Any resolution of the Council	No

Flooding

The land or part of the land is within the flood planning area and subject to flood related development controls	No
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The land or part of the land is between the flood planning area and probable maximum flood (PMF) and subject to flood related development controls	No
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Contaminated Land Management Act 1997

The following matters are as per the [meaning](#) within the Contaminated Land Management Act 1997.

Significantly contaminated	No
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Management order	No
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Approved voluntary management proposal	No
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Ongoing maintenance order	No
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Site audit statement (if copy provided to council)	No
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State Environmental Planning Policy (Housing) 2021

Development consent issued after 11 October 2007 for seniors housing pursuant to s88(2)	No
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Site compatibility certificate issued for affordable rental housing pursuant to State Environmental Planning Policy (Housing) 2021 or State Environmental Planning Policy (Affordable Rental Housing) 2009	No
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If Chapter 2, Part 2, Division 1 or 5 applies to the land, there are conditions of a development consent in relation to the land that are of a kind referred to in s21(1) or 40(1)	No
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Building Notice & Building Product Rectification

The following matters are as per the [meaning](#) within the Building Products (Safety) Act 2017.

Affected building notice	No
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Building product rectification order that is in force in and has not been fully complied with	No
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Notice of intention to make a building product rectification order has been given and is outstanding	No
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Other Matters

Paper subdivision	No
An order has been made under the Trees (Disputes Between Neighbours) Act 2006	No
Annual charges under the Local Government Act 1993 for coastal protection services that relate to existing coastal protection work	No
Chapter 4 of State Environmental Planning Policy (Precincts - Western Parkland City) 2021	No
Special entertainment precinct within the meaning of s202B Local Government Act 1993	No

Disclaimer

- This certificate only addresses matters raised in clauses 1.17A(1)(c) to (e), (2) (3) and (4), 1.18(1)(c3) and 1.19 of E&C SEPP, as relevant to the Yass Valley Local Government Area. There are other general and specific requirements which constrain when complying development may be carried out under the E&C SEPP.
- This certificate only addresses matters raised in clauses 1.16(1)(b1) to (d) and 1.16A of the E&C SEPP, as relevant to the Yass Valley Local Government Area. There are other general and specific requirements which constrain when exempt development may be carried out under the E&C SEPP.
- Failure to comply with the E&C SEPP means that a Complying Development Certificate issued is invalid.
- It is your responsibility to ensure that you comply with the requirements of the E&C SEPP.

Notes

- Pursuant to s10.7 Environmental Planning and Assessment Act 1979 (the Act), as of the date of this certificate, the subject land was affected by the matters indicated below and in the attachments to this certificate.
- Information provided pursuant to s10.7(2) is in accordance with the matters prescribed by Schedule 2 of the Environmental Planning and Assessment Regulation 2021 (the Regulation) and is provided in good faith.
- Information provided in this certificate may be limited by the extent to which Council has been notified of relevant matters by the NSW Department of Planning, Housing and Infrastructure and other relevant state agencies.
- The information contained in this certificate must be read in conjunction with the provisions of the Act, the Regulation and any relevant environmental planning instruments.
- This certificate is electronically generated.
- Section 10.7(6) of the Act states that a council shall not incur any liability in respect of any advice provided in good faith pursuant to sub-section (5). The absence of any reference to any matter

affecting the land shall not imply that the land is not affected by any matter not referred to in this certificate.

Schedule A

State Environmental Planning Policies

The following State Environmental Planning Policies (SEPPs) apply to the Yass Valley Local Government Area. These policies can be viewed on the [NSW legislation website](#).

Title	Description
SEPP Biodiversity and Conservation 2021	This policy includes provisions relating to: • Koala Habitat Protection that encourages identification of core koala habitat and requires the preparation of plans of management within those areas. • Vegetation in Non-Rural Areas that preserves the amenity and protects the biodiversity values of trees and other vegetation in non-rural areas.
SEPP Exempt and Complying Development Codes 2008	This policy sets out exempt and complying development codes for development that is of minimal environmental impact that may either be carried out without the need for development consent or may be carried out in accordance with a complying development certificate.
SEPP Housing 2021	Facilitates the development of affordable and diverse housing including Co-living housing, independent living units, Boarding houses, Build-to-rent housing, Secondary dwellings, Seniors housing and Social housing.
SEPP Industry and Employment 2021	This policy includes provisions relating to advertising and signage to provide for time limits on the display of certain advertisements and regulate display of signage in transport corridors.
SEPP Planning Systems 2021	This policy includes provisions relating to: • State and Regional Development • Concurrences and Consents
SEPP Primary Production 2021	This policy includes provisions relating to primary production and rural development to reduce rural land use conflict.
SEPP Resilience & Hazards 2021	This policy includes provisions relating to: • Remediation of Land which is contaminated to reduce the risk to human health or the environment • Hazardous and Offensive Development to ensure measures are employed to reduce any adverse impact
SEPP Resources & Energy 2021	This policy includes provisions relating to mining, petroleum Production and Extractive Industries to provide for the proper management and development of resources.
SEPP Transport & Infrastructure 2021	This policy includes provisions relating to: • Infrastructure to provide greater flexibility in the location of infrastructure and development which is minimal impact as exempt development. • Educational Establishments and Childcare Facilities to identify development which is minimal impact as exempt development as well as establishing assessment requirements and design considerations
SEPP Sustainable Buildings 2022	The Sustainable Buildings SEPP encourages the design and construction of more sustainable buildings across NSW and ensure consistency in the implementation of the BASIX scheme.